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Defendants Home Depot U.S.A., Inc. and Christine Sandoval's Motion for Summary Judgment, or in the alternative, Summary Adjudication, is DENIED.

Defendants to give notice.

Background

This is an action for premises liability regarding real property located at 3040 Slauson Ave, Huntington Park, CA 90255 ("Subject Premises"). On September 4, 2024, Plaintiff Alberto Arroyo Garcia ("Plaintiff") filed this action against Defendants Home Depot U.S.A., Inc., Christine Sandoval, (collectively, "Defendants") and Does 1 to 50. The Complaint alleges that Plaintiff was injured by a dangerous condition at the Subject Premises owned and maintained by Defendants on May 26, 2023. The Complaint alleges two causes of action for 1) Negligence and 2) Premises Liability.

On November 7, 2024, Defendant Home Depot U.S.A., Inc. filed an Answer.

On January 15, 2025, Defendant Christine Sandoval filed an Answer.

Defendants now move for summary judgment, or in the alternative, summary adjudication on the Complaint.

The Court notes that the hearing on this Motion was originally scheduled for February 3, 2026. Pursuant to the parties' stipulation, the hearing was continued to April 21, 2026. (1/2/26 Stipulation and Order.) On April 21, 2026, the hearing was again continued pursuant to the parties' stipulation to today's date. (4/17/26 Minute Order.)

Trial is set for November 9, 2026.

Evidentiary Objections

Defendants object to the entirety of the Declaration of Eris Barillas, Plaintiff's expert. In the alternative, Defendants object to certain portions of the Declaration.

In the Motion, Defendants argue that the Declaration is speculative, conclusory, and outside the scope of the expert's expertise as a forensic expert. Specifically, Barillas inspected the site over two years after the incident. Thus, any opinions on the presence of birds and the conditions of the Subject Premises' floors are inapplicable. Further, Defendants argue that Barilla did not perform a slip test replicating the actual conditions Plaintiff faced.

The Court agrees with Defendants. Firstly, Barillas' slip test was conducted with water (see Barillas Decl., ¶ 6), and thus, the actual conditions Plaintiff faced were not replicated. Otherwise, Barillas only opines on the general duty of store owners to keep premises free of foreign substances that could result in slips, (See Barillas Decl., ¶¶ 9-10). Even if Barillas' observations could shed light on whether a dangerous condition existed, the Court finds that the parties primarily dispute the issue of notice as discussed in depth later. Further, the Declaration is rife with legal argument and unsupported assertions. For example, Barillas responds directly to Defendants' arguments regarding notice. (See Barillas Decl., ¶ 12.) Lastly, the Court finds that Barillas is not qualified to testify on reasonable measures that could have been taken to deter birds in stores or to address bird droppings.

Accordingly, the Court sustains Defendants' evidentiary objection to the entirety of the Declaration of Eris Barillas.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, internal citations omitted.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.)

In moving for summary judgment, a defendant has met its "burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

Once a moving party has satisfied the initial burden of proof, the burden "shifts to the opposing party to show, by responsive separate statement and admissible evidence, that triable issues of fact exist." (Ostayan v. Serrano Reconveyance Co. (2000) 77 Cal.App.4th 1411, 1418, disapproved on other grounds by Black Sky Cap., LLC v. Cobb (2019) 7 Cal.5th 156, 165.) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Discussion

"The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages." (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.)

"It is well established in California that although a store owner is not an insurer of the safety of its patrons, the owner does owe them a duty to exercise reasonable care in keeping the premises reasonably safe." (Ortega v. Kmart Corp. ("Ortega") (2001) 26 Cal.4th 1200, 1205.)

"'The existence of a dangerous condition is ordinarily a question of fact...but it can be decided as a matter of law if reasonable minds can come to only one conclusion.' [Citation.] If the 'court determines that sufficient evidence has been

presented so that reasonable minds may differ as to whether the defect is dangerous, the court may not rule that the defect is not dangerous as a matter of law.” (Stack v. City of Lemoore (2023) 91 Cal.App.5th 102, 110.)

“A store owner exercises ordinary care by making reasonable inspections of the portions of the premises open to customers, and the care required is commensurate with the risks involved.” (Ortega, supra, 26 Cal.4th 1200, 1205.) For a property owner to be liable for injuries due to a dangerous condition on their premises, the owner must have actual or constructive notice of the dangerous condition. (Id. at p. 1207.)

The parties concede to the following facts: The subject incident occurred on May 26, 2023 at The Home Depot Store number 1002 located at 3040 Slauson Avenue, Huntington Park, California. (UMF Nos. 1-2.) Defendant Sandoval was the Customer Experience Manager working on the day of the incident. (UMF No. 2.) Plaintiff arrived at the store at 7:00 a.m. when the store opened and went to the Garden-Outdoor Living and Power department to look for fence materials. (UMF Nos. 5-6.) While walking down an aisle, Plaintiff slipped and fell to the ground. (UMF No. 8.) The parties generally agree that bird droppings in the middle of the aisle caused Plaintiff’s fall. (UMF No. 9.)

Defendants move for summary judgment on two primary arguments.

Firstly, Defendants argue that Plaintiff cannot prove that they had actual or constructive notice of the bird dropping such that Defendants had a reasonable time to remedy the condition. Defendants offer the following evidence in support:

Defendant Sandoval inspects the facility every day as part of her opening duties, at which time she inspects the aisles for any obstructions, debris, dirt, spills or any other issues; if there are any substances on the floors, they are promptly addressed. (DIOE, Exh. F. Sandoval Decl., ¶¶1 -3.)

Defendant Sandoval began the walkthrough at 6:15 a.m., visiting the Garden-Outdoor Living and Power section between 6:35 to 6:40 a.m. At that time, Ms. Sandoval did not observe any bird poop on the in the aisles. (DIOE, Exh. F. Sandoval Decl., ¶¶ 3 -5.)

Defendant Sandoval received no other reports from customers of bird droppings until Plaintiff’s report shortly after the incident. The Court notes that Defendants’ cited evidence for this fact (DIOE, Exh. F. Sandoval Decl., ¶ 7) does not exist.

Thus, Defendants argue that they had no actual notice of the condition. Defendant implies that they had no constructive notice of the condition, as it was created within less than 30 minutes since Defendant Sandoval conducted her regular walkthrough. Relatedly, Defendants argue that Defendant Sandoval’s inspection practices were reasonable.

Second, Defendants argue that the alleged dangerous condition here—i.e., the bird dropping—was “open and obvious” such that Plaintiff should have been warned of the condition by its existence. Defendant cites to evidence that 1) the subject aisle was “well lit” (DIOE, Exh. D, Depo., Vol. II, 70:2-8, 79:17-24; Exh. A, ¶ 4) and 2) Plaintiff admitted that he saw birds in the store on prior visits and on the day of the incident (DIOE, Exh. D. Depo., Vol. II, 80:5-21; 104:5-20; 106:1-107:25; 108:8-22; Exh. A, ¶ 4).

In opposition, Plaintiff frames the alleged dangerous condition as not one of a single bird dropping, but rather, as a persistent issue of birds inside the Subject Premises. Plaintiff asserts that, a natural corollary of the presence of birds is that there will be a risk of bird droppings. Plaintiff argues that there are many pigeons within this particular Home Depot store. (DIOE, Exh. D, Plaintiff’s Depo., Vol. II, 72:17-25; Barillas Decl., ¶ 6; PIOE, Exh. B Valle Depo., 31:15-25.) Defendant Sandoval admitted that she often saw birds, including a nest, in various areas of the store. (PIOE, Exh. A, Sandoval Depo., 39:21-43:8.) Defendant Sandoval further admitted that she observed bird droppings on the floor about twice a week. (PIOE, Exh. A, Sandoval Depo., 43:6-14.) Plaintiff argues that bird droppings could create a dangerous condition by making the floors slippery. (Barillas Decl., ¶¶ 8, 10; PIOE, Exh. B Valle Depo., 34:6-11.)

Plaintiff thus argues that Defendants failed to take reasonable precautions to prevent the presence of birds in the store. (Barillas Decl., ¶ 15.) Plaintiff concedes that Defendants contracted with a third-party to help eradicate the birds, but that such hiring merely indicates they are aware of the problem. (PIOE, Exh. A, Sandoval Depo., 45-48:12.) Further, Defendants presented no evidence as to how often they specifically inspected the Subject Premises for bird droppings. In other words, Defendants breached their duty of care to reasonably maintain the premises. Defendants' open and obvious argument does not obviate their duty to maintain safe premises—such argument only goes to whether they had a duty to warn of such condition.

As to Defendants' lack of notice argument, Plaintiff asserts that such Defendants had notice of the larger issue of the presence of birds. Thus, Plaintiff need not prove that Defendants had notice of the particular bird dropping that caused the incident. Although Defendants argue that they could not discover the condition within a reasonable time to address it (i.e., no constructive notice), such issue is properly before the jury.

In reply, Defendants first assert that the declaration of Plaintiff's expert, Eris Barillas, should be stricken. The Court previously addressed such arguments.

Defendants deny Plaintiff's assertion that the subject dangerous condition is the presence of birds. Further, Defendants assert that Plaintiff's recommended safety precautions to eradicate the birds are based on belief, rather than evidence. To the extent that the bird droppings that caused Plaintiff's fall is assumed to be the subject dangerous condition, "[t]he unrefuted evidence in this case establishes an in-place policy to handle spills, debris, and other hazards generally, utilizing employees and third party janitorial companies." (Reply, 5:1-3.)

Where the dangerous condition is the particular bird dropping, Plaintiff cannot establish actual or constructive notice. The fact that Defendants may have been aware of the regular presence of birds does not necessarily show that Defendants had notice of the particular bird dropping that caused the fall. Further, Plaintiff inappropriately applies the "mode of business" rule in attempting to sidestep the notice element, citing *Moore v. Wal-Mart Stores, Inc.* ("Moore") (2003) 111 Cal.App.4th 472.

The Court notes that parties primarily dispute what the alleged dangerous condition consists of—i.e., the particular bird dropping that caused Plaintiff's fall or the presence of the birds. Such issue frames the other issues of notice and whether the condition was open and obvious. Plaintiff argues that, where the dangerous condition is birds, Defendant should have been on notice of the specific bird dropping and taken precautions to prevent such droppings. Defendants argue that, where the dangerous condition is specific bird dropping, the evidence shows that Defendants were not on actual or constructive notice.

The Court first makes a small note regarding Defendants' arguments that Plaintiff misapplies the "mode-of-operation" rule as described in the *Moore* case. "The 'mode-of-operation' rule looks to a business's choice of a particular mode of operation and not events surrounding the plaintiff's accident. Under the rule, the plaintiff is not required to prove notice if the proprietor could reasonably anticipate that hazardous conditions would regularly arise." (*Moore*, supra, 111 Cal.App.4th at p. 478, internal quotations and citations omitted [finding the rule did not apply in California, in a case in which the plaintiff slipped on a French fry due to defendant Walmart's business operation choice to operate a McDonald's within the store, naturally leading to patrons bringing their meals into the store and dropping food].) Here, the Court finds that Plaintiff does not and could not misapply the rule—the presence of birds is not a business operation choice but is rather a natural occurrence.

Nevertheless, the Court is more persuaded that the alleged dangerous condition is the particular bird dropping that caused Plaintiff's fall. The condition that birds are often present in the Home Depot is too attenuated and general to serve as the dangerous condition. Further, Plaintiff fails to offer evidence that its suggested precautions, such as increased inspections and installing deterrent spikes, were commonplace or industry standard such that Defendants' failure to use such precautions was a breach of duty. There is no indication that such precautions would have 1) prevented birds from flying in at all or 2) prevented the particular bird dropping that caused Plaintiff's fall. At most, the precautions would have only lessened the chance of the condition occurring.

The Court thus addresses notice under this framing. It is generally undisputed that Defendants did not have actual notice of the bird dropping. However, the Court finds that there is a triable issue of fact as to whether Defendants had constructive

notice of the bird dropping.

Where the evidence fails to show how long the dangerous condition existed prior to the injury, “evidence of the owner’s failure to inspect the premises within a reasonable period of time is sufficient to allow an inference that the condition was on the floor long enough to give the owner the opportunity to discover and remedy it. [Citation.]” (Ortega, supra, 26 Cal.4th at p. 1203.) “The plaintiff need not show actual knowledge where evidence suggests that the dangerous condition was present for a sufficient period of time to charge the owner with constructive knowledge of its existence.” (Id. at p. 1206.)

The Court agrees with Plaintiff that whether the time between inspections was “reasonable” such that Defendants should be put on notice of the condition (i.e., whether Defendants had constructive notice) is an issue for the jury to decide. (See *Louie v. Hagstrom’s Food Stores, Inc.*, (1947) 81 Cal.App.2d 601, 607 [“It is generally a question of fact for the jury as to whether, under all the circumstances, the defective condition existed long enough so that a reasonable man exercising reasonable care would have discovered it.”]; see also *Sapp v. W. T. Grant Co.* (1959) 172 Cal.App.2d 89, 94 [issue of whether 20-minute intervals between inspections was commensurate with the exercise of ordinary care was a proper question for the jury].)

The Court finds that the Ortega case is instructive. In Ortega, the plaintiff did not provide evidence of how long the dangerous condition was on the floor. (Ortega, supra, 26 Cal.4th at p. 1210.) However, there was evidence that the floor had not been inspected for 15 to 30 minutes prior to the accident. (Ibid.) The Court found that such evidence was sufficient to create an inference of constructive notice, such that the question should go to the jury. (Id. at p. 1211-1213.) Similarly, here, both parties are unsure how long the condition existed prior to Plaintiff’s fall. Yet the evidence shows that the area had not been inspected for around 30 minutes or less prior to Plaintiff’s fall. (DIOE, Exh. F. Sandoval Decl., ¶¶ 3 -5; Exh. D, Plaintiff’s Depo., Vol. II, 70:2-8, 70:12-25, 72:7-14.) The Court finds that, the issue of whether the condition existed long enough to impose constructive notice on Defendants is a question appropriate for the jury.

The Court next addresses Defendants’ “open and obvious” argument.

“Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition.” [Citation.] (*Kaney v. Custance* (2022) 74 Cal.App.5th 201, 215.) The Court may, in appropriate circumstances, determine a condition is open and obvious where “photographs prima facie established the obviousness” of the condition. (*Martinez v. Chippewa Enterprises, Inc.* (2004) 121 Cal.App.4th 1179, 1184.)

The Court finds that Defendants have failed to meet their burden of proof in demonstrating that the condition was “open and obvious.” Defendants only cite to evidence that the aisle was “well lit” and that Plaintiff should have been aware of the risk of bird droppings because he saw birds in the store. Such evidence does not assist the Court in finding that any reasonable person would have seen the bird dropping and avoided it. Defendants do not, and cannot, submit photograph or video evidence of the bird dropping before Plaintiff slipped on it. The Court thus cannot decide as a matter of law that the condition was “open and obvious.”

The Court therefore denies the Motion on grounds that Defendants have failed to meet their burden of proof and a triable issue of fact exists as to the issue of constructive notice.

Accordingly, Defendants’ Motion for Summary Judgment is denied.